

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 26, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. White and Dr. Rinne, item #17(a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 12, 2024. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on August 12, 2024. Motion (per Consent Agenda) carried.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located west of Converse Avenue and north of Dell Range Boulevard. Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural for land annexed to the City of Cheyenne located west of Converse Avenue and north of Dell Range Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AG Agricultural to NR-3 Neighborhood Residential - High Density for land located west of Converse Avenue and north of Dell Range Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Bracken Atkinson, Wasatch Development Group. Comment was made by the following member of the governing body: Mr. Cook.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located east of US-30 and north of and adjacent to East Pershing Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MUR Mixed-Use Residential for land annexed to the City of Cheyenne located east of US-30 and north of and adjacent to East Pershing Boulevard. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial to CB Community Business for land located northeast of the intersection of Hutchins Drive and Industry Drive. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LR Low-Density Residential to CB Community Business for land located at 3501 Forest Drive (located southeast of the intersection of Pershing Boulevard and Forest Drive). Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Mr. Roybal moved to postpone to September 9, 2024, seconded by Mr. Segrave. Motion to postpone failed due to a tie vote. Voting “yes” – Mr. Cook, Mr. Esquibel, Mr. Roybal, Mr. Segrave and Mr. White. Voting “no” – Dr. Aldrich, Mayor Collins, Mr. Johnson, Mr. Laybourn and Dr. Rinne. Main motion failed. Voting “no” – all members of the governing body. Public comment was made by: Nancy Loomis, David Evans and Victoria Pike. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. Segrave.

ORDINANCE –2nd READING – Amending Section 2.76.040, Designation of Downtown Development District, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to expand the Downtown Development District. Mr. Roybal moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook and Mr. Laybourn.

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Approving sanitary sewer service, by Outside User Agreement, for Oh Hail No LLC, for land located south of Robert Avenue and west of South Greeley Highway – referred to Public Services Committee. (Sponsor – Mr. Roybal)

Professional Services Agreement between the City of Cheyenne and Lotus Engineering & Sustainability, LLC, for the Comprehensive Climate Action Plan (CCAP) Preparation for Cheyenne, Wyoming (EPA Climate Pollution Reduction Grant (CPRG)). Reporting for Finance Committee, Mr. White moved to approve in an amount not to exceed \$299,985.00, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. (#8036)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and the Laramie County Community Juvenile Services Joint Powers Board for case management services and substance abuse prevention and evaluation (Revenue to the City). Motion (per Consent Agenda) carried (in an amount not to exceed \$176,252.00). (#8037)

[CA] Grant Agreement between the City of Cheyenne and the US Endowment for Forestry and Communities for a National Forests Grant for protecting source water and reducing wildfire risk for rural communities (US Endowment for Forestry and Communities Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$250,000.00). (#8038)

[CA] Grant Agreement between the City of Cheyenne Metropolitan Planning Organization (MPO) and the US Department of Transportation Federal Highway Administration to develop a Comprehensive Safety Action Plan (Federal Highway Administration SS4A Grant and 2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$250,000.00). (#8039)

2023-2025 Collective Labor Agreement re-negotiation between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters. Mr. White advised the item was reviewed under other items for the agenda at the August 19, 2024 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to approve, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. (#8040)

[CA] Contract between the City of Cheyenne Police Department and Tyler Technologies for maintenance and support services of the Police Department’s records management software (General Fund) – referred to Finance Committee.

[CA] License Agreement between the City of Cheyenne and the United States of America Western Area Power Administration (WAPA) for the construction of the Terry Ranch Road-Cheyenne 230-kV and the Owl Creek-Cheyenne 115kV transmission lines – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Ayres Associates for the 19th Street Drainage and Intersection Improvements Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and The Design Studio, Inc. (TDSi), for the restoration and remodel of the Cheyenne Pumphouse (General Fund Reserves) – referred to Finance Committee.

[CA] Drainage Easement Agreement granted by Kenrich, LLC to the City of Cheyenne to ensure maintenance of a storm water conveyance system along the Christensen Road corridor (2017 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Interagency Agreement between the City of Cheyenne and the State of Wyoming, Department of State Parks and Cultural Resources, to outline projects, responsibilities, and special provisions at the High Plains Research Station and Arboretum (Revenue to City) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7975 between the City of Cheyenne and TPT Trails for additional design-build services and trail maintenance for the Belvoir Ranch, Phase 2 Design-Build Trail Project (Belvoir Recreation Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$216,000.00). (#7975)

[CA] Consideration of Bid #S-2-25 for an Agreement between the City of Cheyenne and Reiman Corp. for the Depot Renovation Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

Transfer of ownership of retail liquor license application filed with the City Clerk's Office for 307 Racing Management, Inc. d/b/a 307 Racing, 3310 Ridge Road, Cheyenne, WY (license currently held by Keg, Inc d/b/a D.T.'s Liquor Mart & Tusker Bar). Mr. White moved to approve, seconded by Mr. Cook. Public comment was made by: Kyle Ridgeway. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Dr. Rinne voting "no".

Appointments of Alane West and Brandon Gilchrist to the Housing and Community Development Advisory Council. Mr. Segrave moved to approve, seconded by Mr. Esquibel. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no" and Mayor Collins who did not vote (mayoral appointments).

Reappointment of Rita Meyer to the Revolving Loan Fund Committee; and Joseph Bainbridge and Justin Huntley to the Housing and Community Development Advisory Council. Mr. Roybal moved to approve, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held September 9, 2024 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of ownership of retail liquor license application filed with the City Clerk's Office for 1734 Partners, LLC d/b/a 1734 Partners, 1734 Meadowland Dr., Cheyenne, WY (license currently held by Old Chicago Taproom II, LLC d/b/a/ Old Chicago #74).

Announcement was made that due to City offices being closed for the Labor Day holiday on Monday, September 2, 2024, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O'Neil Avenue, Cheyenne, Wyoming, and via electronic conference meetings as follows: Finance Committee will meet Tuesday, September 3, 2024 at Noon and Public Services Committee will meet Wednesday, September 4, 2024 at Noon.

Public comment was made by the following under Other Business: Seth Lloyd and Johnny Campbell.

The following members of the governing body made comments under Other Business: Dr. Aldrich, Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:18 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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